

the demurring party shall not be subject to default during the period of the extension." (Code Civ. Proc. § 430.41(a)(2).)

Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike, with a similar provision for an extension of the filing deadline if in good faith the parties are unable to meet and confer at least five days prior to the filing deadline. (Code Civ. Proc. § 435.5(a)(2).)

In support of the demurrer and motion to strike, General Motors filed the Kay Declaration in which counsel declares that he attempted to meet and confer with counsel for Plaintiff on August 21, 2025, by emailing and calling him on that date, but he was unable to reach Plaintiff's counsel. (Kay Decl. ¶ 2.) General Motors filed its demurrer and motion to strike with the Kay Declaration at approximately 4:39 p.m. the same date, August 21, 2025. The attempt to call counsel the same date the demurrer and motion to strike were due, and then filing the pleading challenges when the party is unable to reach the other party that same day, violates both the letter and spirit of the meet and confer requirement.

The attempt to meet and confer was untimely as performed on the same date the demurrer and motion to strike were due, not at least five days prior to the due date. Despite the untimely meet and confer attempt, the demurring party could have obtained an automatic 30-day extension of time by filing a declaration as provided in Code of Civil Procedure sections 430.41(b) and 435.5(b) so that a meaningful meet and confer could take place before the pleadings were formally challenged.

The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

14. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT**
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:
Please see Line 13 above.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO FORM**
INTERROGATORIES (SET THREE) AS AGAINST PLAINTIFF
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
Summary

This tentative ruling applies to lines 15, 16 and 17, which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on

February 18, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety.

Background

Defendant filed three discovery motions against Plaintiff to be heard on February 18, 2026 at 9:00 a.m. in Department 16 as follows:

1. Motion to Compel Plaintiffs' Responses to Form Interrogatories (Set Three)
2. Motion to Compel Further Responses to Special Interrogatories (Set Two)
3. Motion to Compel Responses to Special Interrogatories (Set Two)

These three motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each motion on September 16, 2025 by e-mail to Plaintiff's Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is February 3, 2026. No timely opposition was filed. Defendant's counsel filed a Non-Receipt of Opposition to all three motions on February 10, 2025.

Plaintiff's Counsel, Dawn M. Smith, filed an untimely declaration on February 9, 2025, which is six days late, explaining that discovery responses were served on February 9, 2025, long after their initial deadlines. Accordingly, the Court does not consider the late-filed opposition.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them."

Applied here, Plaintiff's Counsel made no attempt to seek leave to file her opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. Counsel Smith's declaration does not include any statements that explain why discovery responses were not provided within the relevant discovery deadlines, and also does not demonstrate good cause for why she filed her declaration late. Counsel's California state bar number suggests that she has been in practice for more than 23 years. Counsel cannot blame inexperience for failing to file a timely opposition. Under *Rancho Mirage* and *Samaniego* cases, *supra*, the Court does not consider the late opposition and treats Defendant's Motion as if it were unopposed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent

to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is deemed to be her consent to the granting of all three motions.

Ruling

1. Defendant’s Motion to Compel Plaintiffs’ Responses to Form Interrogatories (Set Three) is granted. Sanctions in the amount of \$1,522.95 are awarded to Defendant.
2. Motion to Compel Further Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,022.95 are awarded to Defendant.
3. Motion to Compel Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,035.90 are awarded to Defendant.
4. Plaintiff shall pay sanctions in the amount totaling \$7,581.80 to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026.

16. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.

17. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.